

23STCV28232 23STCV28232

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C07%2F09%2F2026

Source SHA-256: 4b6d00f791a3f03f21b9a822deedbdcdcdc145498b33795f9946fe3ec54a05a9

Case Number: 23STCV28232 Hearing Date: July 9, 2026 Dept: 731

[TENTATIVE] ORDER DENYING MOTION FOR LEAVE
TO AMEND

Background

Plaintiff

Rosalie Genus and Defendant Janet Haywood are sisters. Haywood owned certain real property located at 10427 S. Denker Avenue, Los Angeles, California 90047 (the "Property"). In 2007, Genus moved into the Property as a tenant. On January 27, Haywood formed the Western Plaza as an LLC. On April 7, 2017, Haywood transferred title to the Property to the Western Plaza. On January 25, 2018, Plaintiff and Western Plaza entered a written agreement whereby Genus would purchase the property from Western Plaza for \$325,000.00. Plaintiff complied with the terms of the purchase agreement. Western Plaza, acting through Haywood, refused to sign the necessary documents to close escrow and thus transfer the property.

What followed was

a series of lawsuits resulting in stipulated judgements, each of which provided that Defendants Haywood and Western Plaza would transfer the property to Plaintiff, and each of which Defendants Haywood and Western Plaza violated by refusing to sign the transfer documents.

Most recently, in

Los Angeles Superior Court Case No. 19STCV39523, the Court ordered on November 29, 2022, that the court clerk would be appointed as an elisor to execute sale documents on behalf of Haywood and Western Plaza. Plaintiff brought an ex parte application on May 18, 2023, for an order directing the court clerk to sign the

escrow instructions for the transfer (the "Escrow Instructions"), which the Court granted. The court clerk signed the Escrow Instructions.

The Escrow

Instructions provide for the duties and obligations of New Era, which include engaging Lawyers Title to prepare and deliver to Plaintiff a policy of title insurance. Plaintiff provided the signed Escrow Instructions to the escrow officer, New Era and to the title company, Lawyers Title.

Haywood and the

Western Plaza contacted New Era and demanded that New Era refrain from closing escrow to allow Haywood and Western Plaza to appeal the judgment in Case No. 19STCV39523. The Escrow Instructions do not provide a grace period for appeal, nor do they permit a party to unilaterally cancel the agreement. Haywood and Western Plaza have not posted bond.

New Era refused to

comply with the Escrow Instructions and close escrow.

Lawyers Title has

not delivered a title insurance policy to Plaintiff.

Plaintiff filed

this action on November 16, 2023, joining New Era and Lawyers Title as defendants in addition to Western Plaza and Haywood. New Era and Lawyers Title were not parties to the previous actions. Plaintiff raises claims for (1) declaratory relief (against all Defendants); (2) injunction (against New Era and Lawyers Title); (3) injunction (against Haywood and Western Plaza); and (4) specific performance (against New Era and Lawyers Title). Plaintiff seeks damages from Haywood and Western Plaza, and an order compelling New Era to comply with the Escrow Instructions and close escrow.

Default was

entered against Western Plaza on January 17, 2024. On June 4, 2024, the court sustained the demurrer to the first, second and fourth causes of action with leave to amend, and denied the motion to strike. On June 14, 2024, Haywood answered the complaint. On June 17, 2024, Haywood and Western Plaza filed the Cross-Complaint against Plaintiff, raising claims for (1) reformation of contract; (2) declaratory relief (as to the sale price of the Property); and (3) fraud.

On July 1, 2024,
Plaintiff filed the first amended complaint for (1) declaratory relief (against all Defendants); (2) injunction (against New Era and Lawyers Title); (3) injunction (against Haywood and Western Plaza); and (4) specific performance (against New Era). Defendants answered the first amended complaint on July 31, 2024, and August 2, 2024, respectively.

On September 4,
2024, Genus dismissed Lawyers Title Company with prejudice.

On September 17,
2024, the court granted Plaintiff/Cross-Defendant Genus's motion for judgment on the pleadings on the cross-complaint without leave to amend.

On January 28,
2025, the court denied the motion for judgment on the pleadings by Haywood and 8424 Western Plaza LLC on the first amended complaint.

Leave to Amend

Request for Judicial Notice:
Granted.

The court takes judicial notice of
the existence of the pleadings, but not for the truth of the matter asserted.
The court takes judicial notice of prior orders and the stipulated judgment within the related case for both factual findings and impacts to the instant action.

Haywood and 8424
Western Plaza LLC (Cross-Complainants) move for leave to file a first amended cross-complaint including causes of action for Fraud, Breach of Contract, Breach of Implied Covenant of Good Faith and Fair Dealing, and Property Damage to Residence. Cross-Complainants rely on the familiarity and a sought after interest in resolving all claims within the subject action as the basis for leave.

Genus in
opposition challenges the subject proposed amended cross-complaint as seeking to improperly revive and re-litigate previously adjudicated issues via the

order for judgment on the pleadings granted on the cross-complaint with prejudice/without leave to amend and the stipulated judgment. As a motion for reconsideration, any such request is untimely. The motion lacks procedural compliance in terms of explaining the new changes. The fraud claim is barred by the statute of limitations.

New counsel for

cross-complainants substituted into the action on June 26, 2026, after the May 19, 2026, filing of the motion. No reply appears on file.

A motion for leave

to amend must comply with the requirements set forth in California Rules of Court Rule 3.1324, which states as follows:“(a) Contents of motion: A motion to amend a pleading before trial must: Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (b) Supporting declaration: A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and The reasons why the request for amendment was not made earlier...”

The court may grant leave to amend the pleadings at any stage of the action. (Code Civ. Proc., § 473, subd. (a).) A party may discover the need to amend after all pleadings are completed (the case is “at issue”) and new information requires a change in the nature of the claims or defenses previously pleaded. (See *Dye v. Caterpillar, Inc.* (2011) 195 Cal.App.4th 1366, 1380.)

Leave to amend is

generally liberally granted. (Code Civ. Proc., § 473(a); *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296.) The court will not generally consider the validity of the proposed amended pleading in ruling on a motion for leave, instead deferring such determinations for a demurrer or motion to strike, unless the proposed amendment fails to state a valid claim as a matter of law. (*Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)* (1989) 213 Cal. App.3d 1045, 1048; *California Casualty Gen. Ins. Co. v. Superior Court*

(1985) 173 Cal.App.3d 274, 280–281 disapproved of on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390.) Dilatory delays and prejudice to the opposing parties is a valid ground for denial. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

The motion lacks sufficient procedural compliance, including articulated changes or a statement whether the proposed amended complaint is entirely new given the prior order granting judgment on the pleadings without leave to amend. More importantly, the motion lacks any explanation as to the timing of the motion or context from the prior order. Lastly, the proposed cross-complaint is barred as a matter of law.

As a motion for reconsideration or new judgment of the order granting the motion for judgment on the pleadings, the motion lacks compliance with the timing, identification, and substantive requirements supporting any form of relief. As a represented new pleading, the proposed first amended cross-complaint constitutes an improper attempt to relitigate now adjudicated issues.

Claim Splitting

The doctrine of *res judicata* gives certain conclusive effect to a former judgment in subsequent litigation involving the same controversy. It seeks to curtail multiple litigation causing vexation and expense to the parties and wasted effort and expense in judicial administration. *Res judicata*, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. Under the doctrine of *res judicata*, if a plaintiff prevails in an action, the cause is merged into the judgment and may not be asserted in a subsequent lawsuit. All claims based on the same cause of action must be decided in a single suit; if not brought initially, they may not be raised at a later date. *Res judicata* precludes piecemeal litigation by splitting a single cause of action or relitigation of the same cause of action on a different legal theory or for different relief. (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 897.) “*Res Judicata* is not a bar to claims arising after the filing of the initial complaint.” A party may assert

new claims in an amended pleading, “but if no such pleading is filed, a plaintiff is not foreclosed. [Citation.] The general rule that a judgment is conclusive as to matters that could have been litigated ‘does not apply to new rights acquired pending the action which might have been, but which were not, required to be litigated [Citation]’.” (Allied Fire Protection v. Diede Const., Inc. (2005) 127 Cal.App.4th 150, 155; Planning & Conservation League v. Castaic Lake Water Agency (2009) 180 Cal.App.4th 210, 226-227.)

“In general, collateral estoppel precludes a party from relitigating issues litigated and decided in a prior proceeding. (Citations.) ‘Traditionally, we have applied the doctrine only if several threshold requirements are fulfilled. First, the issue sought to be precluded from relitigation must be identical to that decided in a former proceeding. Second, this issue must have been actually litigated in the former proceeding. Third, it must have been necessarily decided in the former proceeding. Fourth, the decision in the former proceeding must be final and on the merits. Finally, the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. (Citation.)’” (Gikas v. Zolin (1993) 6 Cal.4th 841, 848–849.)

A court can take judicial notice of prior orders for purposes of determining res judicata or collateral estoppel. “Whether a factual finding is true is a different question than whether the truth of that factual finding may or may not be subsequently litigated a second time. The doctrines of res judicata and collateral estoppel will, when they apply, serve to bar relitigation of a factual dispute even in those instances where the factual dispute was erroneously decided in favor of a party who did not testify truthfully.” (Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1569.)

The request for judicial notice includes prior court order in BC706314, whereby on August 21, 2019, the court entered the parties settlement agreement and granted the order enforcing the settlement. [Req. Jud. Not., Ex. 2C.] The court ordered 8424 Western Plaza, LLC to pay all liens secured against the property, and provide documents in order to close escrow. The second complaint, 19STCV39523, also led to a stipulated settlement and April 11, 2022, entered judgment, requiring the sale of the property under the agreed upon terms, with a close of escrow no later than 45

days from June 6, 2019. Defendants were again ordered to pay all liens and fees, and cooperate with escrow. The matter would be dismissed with prejudice. [Req. Jud. Not., Ex. 2D-E.] On November 30, 2022, the court granted the motion to enforce the settlement, including the appointment of the Elisor.

The cross-complaint in the latest action again seeks reformation and challenge to the now twice previously enforced stipulated agreements leading to judgments. The court unequivocally found the cross-complaint barred by the statute of limitations. [Req. Jud. Not., Ex. I.]

Cross-Complainants present no new facts establishing a basis for the finding of any new claim. The proposed first amended complaint continues to allege claims already found barred in the order for judgment on the pleadings.

The claims are also barred under the doctrine of claim splitting. Cross-Complainants should have raised any and all of the subject claims in the prior two complaints. While, Plaintiff continued to file new complaints rather than seek enforcement of the prior two actions, the continued extension in no way constituted new opportunities for resuscitation of expired and/or adjudicated claims.

The motion is denied.

Cross-Complainants are ordered to give notice.